

9:01 2	23CV426955	Jayden Gu v. Patrick Pei Chang, M.D., et al.	Order on Compromise of Minor's Claim Before the Court is a Petition filed on June 3, 2026 by Xinchu Gu, (the "Petitioner"), who is the Parent and Guardian ad item of Jayden Gu, a minor, for an Order Approving a Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor (the "Petition"). The Petition is well grounded in the law, well supported by the facts, and reasonable in all respects. The Court finds that all the relief sought is in the best interests of the minor Jayden Gu. Accordingly, the Petition is GRANTED in all respects. After this hearing, the Court will sign and file the two Proposed Orders that were prepared and filed with this Petition on June 3, 2026, specifically: 1. Order Approving Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor; and 2. Order Authorizing Deposit of Minor's Settlement Proceeds Into 529 College Savings Plan. SO ORDERED.
9:01 3			
9:01 4			
9:01 5			

9:00 <u>1</u>	24CV433813	<i>Georgii Kliukovkin</i> <i>v.</i> <i>uDevs Inc., et al.</i>	Order on Defendant's Motion to Strike Portions of Plaintiff's First Amended Complaint See Line 1 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 <u>2</u>	24CV444270	<i>Chad Hutson</i> <i>v.</i> <i>Sam Anderson</i>	Order on Defendant's Motion for Summary Judgment or, in the alternative, Summary Adjudication See Line 2 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 <u>3</u>	24CV454356	<i>Wells Fargo Bank, N.A.</i> <i>v.</i> <i>Saeed Alampaykar</i>	Order on Plaintiff's Motion to deem the truth of all matters specified in RFAs admitted by Defendant See Line 3 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 <u>4</u>	25CV473892	<i>Keep America Safe and Beautiful</i> <i>v.</i> <i>General Printing & Design, Inc., et al.</i>	Order on Plaintiff's Motion to Approve Settlement and enter Judgment under the terms of Proposition 65 Settlement and Consent Judgment See Line 4 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.

9:00 5	25CV474504	<i>Adedayo Abioye</i> <i>v.</i> <i>Abraham Chapa, et al.</i>	Order on: 1. Defendants' Demurrer to Plaintiffs' Complaint & 2. Defendants' Motion to Strike Punitive Damages from Plaintiff's Complaint <i>See Line 5 below for complete tentative ruling on Defendants' Demurrer and Defendants' Motion to Strike.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 6	25CV474504	<i>Adedayo Abioye</i> <i>v.</i> <i>Abraham Chapa, et al.</i>	Order on Defendants' Motion to Strike Punitive Damages from Plaintiff's Complaint <i>See Line 5 below for complete tentative ruling on Defendants' Demurrer and Defendants' Motion to Strike.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 7	25CV474626	<i>Schechinah Pritchard</i> <i>v.</i> <i>Starbucks Corporation, et al.</i>	Order on Defendant's Motion to Strike Punitive Damages from Plaintiff's Complaint <i>See Line 7 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.

9:00 <u>8</u>	25CV477490	<i>Wells Fargo Bank, N.A.</i> <i>v.</i> <i>Phat Tran</i>	Order on Plaintiff's Motion to deem the truth of all matters specified in RFAs admitted by Defendant See Line 8 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 <u>9</u>			
9:00 <u>10</u>			
9:00 <u>11</u>			
9:00 <u>12</u>			
9:00 <u>13</u>			
9:00 <u>14</u>			
9:00 <u>15</u>			

Line 1

Case Name: *Georgii Kliukovkin v. uDevs Inc., et al.*

Case No.: 24CV433813

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant uDevs Inc. (“Defendant”) moves to strike portions of Plaintiff’s First Amended Complaint (“FAC”) under Code of Civil Procedure Sections 435 and 436(a), specifically:

- Paragraph 8 in its entirety (FAC at 2:28-3:2) (“At the time Exhibit A was entered into, Defendants knew that they would not perform their obligations thereunder, and that the representations set forth in Exhibit A with respect to their promise to do so were false and fraudulent.”); and
- Paragraph 9 in its entirety (FAC at 3:3-5) (“At the time Plaintiff entered into Exhibits A and B, he did not know that Defendants’ representations concerning their promises were false and fraudulent, and Plaintiff believed them to be true.”).

Notice of Motion to Strike (the “Motion to Strike”) at 2:1-10 (filed: Dec. 5, 2025).

The Motion to Strike is made on the grounds that paragraphs 8 and 9 of the FAC are irrelevant or are improperly alleged as part of Plaintiff’s First Cause of Action for Breach of Contract because (Defendant argues) they relate only to Plaintiff’s Second Cause of Action for Fraud (*rather* than Breach of Contract). *Id.* at 2:11-13.

The Motion to Strike came on for hearing on July 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background

The FAC alleges that on April 9, 2020, the parties entered into a written Income Share Agreement (“the Agreement”) which was latter modified as Addendum No. 1 (“Addendum”). (FAC, ¶ 4; Exs. A, B.) Defendant agreed to assist Plaintiff in obtaining an O-1 Visa (“the Visa”) and Plaintiff agreed to pay a percentage of his future income to Defendant. (FAC, ¶ 5.)

On April 9, 2020, Plaintiff paid Defendant \$2,987 in accordance with the Agreement. (FAC, ¶ 6.) Defendant breached the contract by failing to assist Plaintiff obtaining the Visa. (FAC, ¶ 7.) After waiting four years, Plaintiff notified Defendant that he was rescinding the Agreement and Addendum due to Defendant’s non-performance. (FAC, ¶ 10.) Defendant refuses to restore Plaintiff with the \$2,987 payment. (*Ibid.*)